

Ghazali's *Mustasfa*

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Abu Hamid al-Ghazali's *al-Mustasfa* (the Distilled) is a classic in Islamic theoretical jurisprudence. But are there good philosophical reasons to read it today? Well, it is an excellent exposition of the field of Islamic legal philosophy, and it represents a certain *slant* within its medieval practitioners, which, even nine centuries subsequent to its composition, remains crisp and concise. It is also a text with ripple effects, even outside the borders of its genre. Students of Islamic philosophy will know that Ghazali's *Tahafut al-Falasifa* was **second** in a series, the first of which being Farabi and Ibn Sina's philosophical works, which Ghazali attacked and generically seen as 'philosophy,' and the third of which being Ibn Rushd's defense of the philosophy of Aristotle (in *Tahafut al-Tahafut*). Ghazali's *Mustasfa* is also **second** in a strange series, the first of which is his teacher, al-Juwayni's, *Burhan*, and the third is Mazari's summary of the *Burhan* (*Idah al-Mahsul*), which found Ghazali's text more loyal to the principles of Islamic legal philosophy than that of his teacher's. In other words, Mazari attacked the **first** in the series and defended the **second**. This essay makes the case that Ghazali's *Mustasfa* is not simply an esoteric piece of narrow jurisprudential exercises. It has implications beyond its field, and it merits being read and re-read.



MUSTASFA & THE TRADITIONS OF USUL AL-FIQH

Al-Mustasfa was written during the third of three stages in the life of its author, according to this author himself. In an unusual introduction to the book, the author

states that he went through two stages, one broadly academic and another broadly spiritual, before he went back to his academic work with a spiritual twist. *Al-Mustasfa* is also its author's fourth shot at writing a work of *usul al-fiqh*, following a shorter digest (*al-Mankhul*), a long compendium (*Tahdhib al-Usul*; missing), and a text specifically directed to the questions of *ratio legis*, or the *'illa*/pl. *'ilal*---the reasons of the laws. The medium text, *al-Mustasfa*, comes out to a little over 180,000 words and is divided into a general **introduction** on logic (I) and **four quarter-tracts**, on the classes of legal rulings (Q1), the sources of the law (Q2), the methods of extracting the rulings from the sources (Q3), and finally the principles governing the exercise of ruling and the qualifications of its practitioner (Q4). (I = Intro, Q1 = *thamara/hukm*; Q2 = *adilla*; Q3 = *istithmar*; Q4 = *ijtihad*.)

After a century of commentaries on Shafi'i's *Risala* (from Sayrafi d. 330/942 to Abu Muhammad (the father of the more famous Abu al-Ma'ali) al-Juwayni (d. 438/1046), independent books (heretofore the *novel classics*) in *usul al-fiqh* (in the so-called Kalam tradition) came about. (Even Abu al-Ma'ali (d. 478/1085) is reported to have authored one such commentary on Shafi'i's *Risalah* before he came to write his own, independent, *usul* text—*al-Burhan*.) In any case, *usul al-fiqh*'s novel classics eclipsed those *Risalah* commentaries, which, to be sure, continued to be cited throughout the centuries all the way into Zarkashi's *al-Bahr al-Muhit* in the 8th/14th century.

Four of these novel classics became known as the pillars of the field, perhaps based on a testimony by Abu Bakr al-Razi (d. 606/1209). These include the *Mustasfa*, next to Juwayni's (d. 478/1085) *Burhan* and Abu al-Husayn al-Basri's (d. 436/1044) *Mu'tamad* and a fourth text, *al-'Umud*, by al-Qadi 'Abd al-Jabbar (d. 415/1024). In the introduction to the *Mu'tamad*, Basri states that his work is a take-two attempt at writing an *usul al-fiqh* text after a commentary on *al-'Umud*, which, Basri complains, included too many theological digressions. (The title *al-Mu'tamad* hangs on the title *al-'Umud* with both rhyme and alliteration, but it is not a commentary on it.) The four primary texts are authored by Shafi'is, but the first two ('Abd al-Jabbar's and Basri's) are *Mu'tazilis*, while Ghazali and his teacher are counted among the *Ash'aris*. If the *Mu'tamad* and *Burhan* delineated the genre's structure, Ghazali's text was not

significantly distinct. Both Basri and Juwayni introduce the field with generalities on logic and the categories of human actions (ahkam), address questions of language and interpretation then delve into consensus and Sunna reporting, and end with Qiyas, and finally arguments other than text, consensus, and analogy (known as the *istidalal* category) and then discuss *ijtihad*. The *Burhan* is an aggregation of four or five ‘books,’ one on **Bayan** (*Kitab* and *Sunna*), one on **Ijma’**, one on **Qiyas**, and one on **Istidalal**, with an appendix on *Ijtihad*. This structure does allow scattered digressions here and there.

The four pillars are divided evenly between Ash‘aris and Mu‘tazilis. The thought that usul al-fiqh, again in its Kalam variety, is indebted to these two theological camps, their early inquiries and intellectual head-butting, survives through subsequent centuries. The founders, however, may be reduced to one from each camp, and these would be ‘Abd al-Jabbar (from the Mu‘tazili camp) and a source of both Juwayni and Ghazali, that is, Abu Bakr al-Baqillani (d. 403/1012) from the Ash‘ari side. The reduction of the sources of Kalam-based usul al-fiqh into two sources is reported in Zarkashi (d. 794/1392), who states that usul al-fiqh had two founders, both of whom judges, *qadi al-sunna* (Baqillani) and *qadi al-mutazila* (Abd al-Jabbar).

How about the non-Kalam variety? That would be the Hanafi, or the fuqaha’ approach, where another usul al-fiqh tradition was founded independently, and almost simultaneously with Shafii, by ‘Isa Ibn Aban (d. 212/827). IN the beginning of the *Mustasfa*, Ghazali takes Dabbusi to task for putting too much furu‘ or cases in his usul writing. He also criticized those who put too much kalam or theology-type reflections in their usul. Good usul displays independence from adjacent fields. The short version of Baqillani’s *al-Taqrīb wa al-irhsad*, half available in volumes, is an important source of Ghazali’s *Mustasfa*, next to Juwayni’s *Burhan*

References below to Ghazali’s *Mustasfa* are made to the text’s first modern, two-volume, edition (Cairo: Bulaq Press, 1294/1877; in my copy the first volume carries the date 1322/1904 and the second 1324/1906), accompanied by Ibn Nizam al-Din of Laknaw’s (d. 1225/1810) commentary on Muhibb Allah b. ‘Abd al-Shakur (d. 1119/1707)’s *Musallam al-Thubut*.

Al-Mustasfa's main subject is legal epistemology. The religious law, for Ghazali, is derived from a human working on the content of a divine revelation. Reason alone is not productive. In Q1 (v. 1, pp. 55-61), Ghazali states **"The Mu'tazila hold that human actions are good or bad. This (goodness or badness) is known at times by the human reason without the mediation of any reflection, such as the goodness of saving a drowning person and those on the verge of perishing, and such as being grateful to the One who bestows all of life's gifts, and such as the goodness of truthfulness, and such as the badness of denial of the gifts (kufran), inflicting pain on the innocent, and lying with no justification. Some of these are known via reason after some reflection, such as the goodness of truthfulness from which harm ensues, and the badness of lying from which benefits ensue. Some of these are known via revelation, such as the goodness of prayers, pilgrimage, and the rest of the rituals. These latter acts, they [the Mu'tazila] claimed, each possesses a quality that distinguishes them from other acts, as these acts promote the potential of the softness of the heart which creates a propensity toward doing good deeds and refraining from bad ones, but the human reason could not discern this on its own."** Ghazali then proceeds to specify three meanings for this dyad (husn and qubh), aiming to dismantle the Mu'tazili way of looking at the matter. The inquiry (on whether goodness and badness is intrinsic to acts and discernable by the unaided human reason) is followed by two germane inquiries, one on whether one could truly discern from the unaided reason a duty to be grateful to the One who bestows all of life's gifts (v. 1, pp. 61-63) and whether acts are considered lawful by default before a human learns of the presence of a divine revelation that regulates them (v. 1, pp 63-65).

How long can Ghazali hold the view that reason alone is not capable of producing good and binding laws? One of Ghazali's four sources of the law and the skeleton of Q2 is *dalil al- 'aql wa al-istishab* (v. 1, pp 217-245). This he discusses before he concludes the second section of his text where he enumerates the sources of

the law with (also four) imaginary sources for legal and moral instruction. Just as Shafi'i's *Risala* is jarringly absent from the four major pillars of *usul al-fiqh* to the benefit of the two Mu'tazili and two Ash'ari texts indicated earlier, Shafi'i's fourth source of the law (*qiyas*, for him a synonym of *ijtihad*) is replaced in Ghazali's *Mustasfa* by 'reason and the argument from default presumptions.' In his discussion of this fourth source, one learns quite a bit about Ghazali's narrowly charted (and awkward) epistemological positions.: **"Keep in mind that revelation-based categories and judgments (al-ahkam al-sam'iyya) could not be attained by the bare reason; rather, the unaided reason indicates the absence of obligations (bara'at al-dhimma 'an al-wajibat) and humans' lack of responsibility for carrying out acts or abstaining therefrom before the assignment of messengers, peace be upon them all, and supporting them with miracles."** The absence of any categorization or judgment on acts is known by the unaided reason before revelation, and we presume that this default is carried over until revelation-based knowledge is attained. When a prophet establishes the obligation of five prayers, a sixth prayer remains out of the category of obligation, not because the prophet negated its obligation, but because its obligation has never been established. It remains at the default of an original negation. This is because [the prophet's] statement is limited to an obligation of five prayers. No revelation, [regarding a sixth prayer,] came at all. Similarly, when the revelation establishes an obligation to fast during the month of Ramadan, fasting during Shawwal remains at the initial default of a negated obligation. When the prophet establishes an obligatory ritual at a certain time, a worshipper's responsibility for that act of ritual after the indicated time remains at the default of an absence of responsibility (al-bara'a al-asliyya). When the prophet establishes a responsibility for a person of ability, those who lack that ability remain at the default of no responsibility. [A jurist's] reflection on religious laws, then, tackles **a) establishing and b) negating these. The unaided human reason is incapable of establishing any obligation. Negating an obligation, however, is within the reach of that unaided reason until a revelation-based source with an indication that moves that act from the original negation. The unaided reason is thus capable of**

establishing one of the two possibilities [i.e., negating a responsibility, not establishing it].” (v. 1, pp 217-219).

Attacks then come from the other end by those who are skeptical that the unaided reason may be productive at all. **“If it is argued** that the bare reason is a source of knowledge (*dalil^{an}*) on the condition that there be no revelation (*sam*’), then after the revelation and establishing religious instructions (*shar*’) this condition of ‘not knowing of the content of revelation’ is absent, which means that a negation of an instruction is not attained as a form of ‘knowledge’; in other words, **all this [unaided reason’s] knowledge is ignorance of the presence of a revelation.** [It is nothing but absence of knowledge.] Absence of knowledge is not a binding argument (*hujja*). **We would reply that an absence of a revelation-based knowledge may be attained with certainty (‘ilm) or verisimilitude (zann).** We are, for example, certain that there is no argument for the obligation of fasting during the month of Shawwal, nor is there one to establish the obligatoriness of a sixth daily prayer. Were there to be such argument, it would have been transmitted; it would have not been obscured from the worldwide community of Muslims. This here is ‘knowledge’ of an absence of an argument or foundation [for an instruction], rather than ‘absence of knowledge’ of a foundation [for an instruction.] Yes, absence of knowledge of the foundation of an instruction is not a binding argument (*hujja*); knowledge of the absence of a compelling argument is binding, by contrast.” (v. 1, pp 219-220)

Ghazali then proceeds to show that verisimilitude follows a similar path, except inasmuch as an extra step is needed to establish that the absence of any revelation-based dictum for an instruction when attained by verisimilitude becomes as binding as ‘certainty’ to the scholar (to establish the absence of that instruction), since a scholar is obliged to treat verisimilitude as if it were certainty, when certainty is unattainable.

Could God ask us humans to do the impossible? Despite Abu al-Hasan al-Ash‘ari being reported to allow it, and despite the fear that contradicting him would mean an adherence to the undesirable Mu‘tazili view of God being required not to do bad (*qabih*) or worse, be required to do what is best (*aslah*, Ka‘bi’s (d. 319/931) requirement), Ghazali says that God does not ask us to do what is impossible, because

a command is meaningful only when it is comprehended by those (humans) who receive it (Q 2, v. 1, p. 87-8). The comprehensible, on this simple inference, is something of a byword for the impossible.

The **sources** of the law, which establishes (the law establishes) a positive category for an act **are ultimately three in one**, the one being **God's word** (Q 2, v. 1, p. 100). The Sunna only conveys it (God's word), and consensus is both established by it and relates its content. In other words, Sunna is part of what God says and *ijma'* (the consensus of those concerned) is an agreement about what God says. In the introduction, incidentally, Ghazali had reduced the three sources of the law in Islam into one, but that one was the **Prophet's statement**, since the latter conveys the Qur'an itself (I, v. 1, p. 6). A good reader of Shafi'i's *Risala*, Ghazali, perhaps, sees the Qur'an and the Sunna as two sides of the same coin. The doctrine of mutual abrogation between Qur'an and Sunna has a chicken and an egg affinity with the Qur'an and the Sunna being two sides of one and the same thing. Shafi'i, those who know his *Risala* know, proposed that even if we didn't know of a report from the Prophet abrogating his own laws that contradicted a clear and subsequent text from the Qur'an, we would comfortably assume that such report existed and was simply missing in the vagaries of reporting.

Unless one is a prophet himself, reporting the content of the divine revelation becomes the most crucial part of distinguishing this bare or unaided reason's activities from those of the qualified jurist. The Qur'an's transmission having been established to a Muslim jurist's satisfaction, the Prophet Muhammad's Sunna becomes a basic concern for the jurist; how could we know the Prophet Muhammad said or did or tacitly approved of this? While the chains of reporting have their hitches and glitches, the reports on which they stand are admissible (to a Muslim jurist) as a basis for laws, if they come from known and corroborated sources. Jurists could debate whether the sources are known and/or corroborated on a case by case basis.

A borderline condition for the report of the Prophet's legacy of instructions and actions is whether a reporter may be known by name, unknown to have suffered from a bad character, but is also unknown to have possessed the requisite good character. Could we give unknown reporters the benefit of the doubt—the benefit of

our ignorance of their character? In Q2 (v. 1, 157) Ghazali reports a view from Iraq that good character comes down to "declaring oneself to be a Muslim in addition to the absence of clear indicators of bad character. All Muslims of unknown character, for the one holding this view, is of an upright character. For us, this person's character remains without a judgment, unless we have researched his ways sufficiently to know him (as opposed to what he appears to be like)." Ghazali then proceeds to level six arguments for his position, followed by a refutation of four bad arguments from his opponent (v. 1, pp. 157-160). In this context, Ghazali binds himself to the view that "empirical knowledge indicates that the number of Muslims with bad character is more abundant than Muslims of good character" (v. 1, p. 159), hinting that, were defaults to follow generalizations of majority, one would assume a reporter of unknown upright character to fall in the untrustworthy majority.

There are two gaps left in the two inquiries, both caused by the researcher's lack of omniscience. Let's juxtapose them:

- A jurist who, after searching in vain, knows of no reason to decide a practical question one way or another follows what he presumed to be the case before that failed search. (This default is elusive, since Ghazali rejects theories that take acts before God's revelations as presumptively permitted or prohibited as this presumption is a replication of the Mu'tazili view that acts are intrinsically good or bad, which he refuted earlier.)
- A scholar in search of a confirmation of the good character of a reporter follows a negative presumption, derived from a sense that the majority of the believers don't meet the high standard of good character required in a reporter of an authoritative statement from the messenger of God.

The leaning in both cases is toward negating the availability of a revelation-based instruction. This, however, is a double edge sword. It pours into a skeptical pool and a suspension of judgment; on the other hand, it leaves room for personal inspiration and intuition for the average believer, if not for informal instruction by a religious

authority away from the confines and high standards of religious legal and moral knowledge.

Ijma' for Ghazali, it turns out, is a meek, almost empirical reality one may defend without any cost. All an *ijma'* report tells us is that Muslims think that or jurists think that; nothing objective about it. Ghazali's teacher, Juwayni (more below) had specifically explained that *ijma'* is an agreement whose subject is not an objective form of knowledge (i.e., neither history, nor physics, nor any non-religious matter.) There is also, one must note, nothing special about a consensus among Muslims. Christians agree on the trinity and Zoroastrians on the dualist doctrine. As Ghazali (Q2, vol. 1, pp. 173-175) reiterates and clarifies these points, he unreasonably claims that reporting the agreement of all Muslims, including a Muslim captive outside the Islam abode, is possible. He also takes the opportunity to score a point against al-Nazzam (d. 231/845), who denies that consensus is authoritative, for his doctrine that, since what matters is 'argument,' a consensus is the view of one individual with a good argument (Compare: For Ja'faris, consensus is authoritative only because the imam is included in the community of consensus). Ghazali swerves from tacitly endorsing that a consensus within a school of law (*madhhab*) emanates ultimately from an argument made by the school's founder, one individual, to mocking the concept of consensus from argument. What makes *ijma'* authoritative has nothing to do with an argument. When all Muslims agree about a religious matter, they cannot be wrong, because they are simply in agreement about what their religion teaches (who is going to prove them wrong? An outsider?). And what distinguishes their agreement from the agreement of Zoroastrians or Christians is that they are Muslim, neither Zoroastrian nor Christian.

In the Mustasfa, Ghazali argues for *usul al-fiqh* foundations that are compatible with *fiqh* rulings of the Shafi'i school. The arguments never ascend to the level of 'final' explanations, as is the case in the core of legal epistemology. Take his arguments to establish that a command (*amr*) may by its very nature indicate either **1)** an obligation or a recommendation, **2)** an obligation to perform an act once or multiple times, **3)** an obligation to be carried out immediately or after an interval (based on the choice of the obliged). (Mustasfa, Q 3, v. 2, pp. 2-12) True, his refusal to accept that

a command to command (*al-amr bi-l-amr*, e.g., asking a parent to ask a child to start practicing the prayer at age 7) is a command (does it create an obligation by God directly for the child), his refusal that commanding an act necessitates the prohibition of its opposite, and his refusal to accept that acts have any innate qualities that lead to taking them to be good or bad, worthy of approval or disapproval—all lead to theological and basic questions. (*al-nahy la yaqtadi al-fasad*, Mustasfa, Q 3, v. 2, pp. 25). His text, however, never makes the leap toward a purely philosophical legal epistemology, a point of contrast with his teacher, al-Juwayni, which I discuss briefly in the next section.

Ghazali is argumentative and stingy with his opponents. His main strategy in refuting positions with which he disagrees is the two-step **sabr wa taqsim leading to a reductio** (never indicated in each instance inside the book's four quarters, though amply explained in his introduction). This is what it looks like. **First**, he must specify all the possible positions one may hold. **Then** he refutes each one, leaving **one not in need of defense**. Some arguments against Mu'tazilis are to score theological, rather than legal, points, such as when he insists that one must not stipulate the life of a commanded individual at the time of the fulfillment of that command for the command to have been established for someone, saying that God may command an individual to fast next Ramadan, knowing the person will not live to that time, because God may want her or him to be rewarded for preparing or allow others to learn something. (Mustasfa, Q 3, v. 2, pp. 15-17)

I have argued elsewhere, and I stand by my argument, that Ghazali's epistemology is bifurcated, in the sense that his laws address a non-philosophical audience and hence stand on knowledge of tradition, rather than purely sound arguments. (The First Person Singular: Personal and Social Knowledge in Conflict, in 'Pitfalls of Scholarship' (NYU: Palgrave, 2016)) Ghazali's bifurcated discourses are saved from easy exposure, however, given that the two epistemological spaces (of legal philosophy and theoretical jurisprudence) don't glaringly overlap.

The Mustasfa also reads as a bridge between kalam and fiqh. The bridge is in both places, but not firmly in either.

Ghazali's *Mustasfa*, unfortunately, covers a broad sweep of issues and shows an author with multiple battles and diverse ammunition. This reader this time (I did encounter the text for the first time in 1992) was looking for moments where the author spelled out how he saw the world of human cognition and activities in relation to a more stable and real world, unaffected by change—while all worlds, of course, fall under the jurisdiction of one and the same God. Taking some legal scenarios as a guide, the point may become clearer. When female **a**, who is known to be un-marriable to male **A** (say, sister), is mixed with female **b** with no chance of identifying who is who, both **a** and **b** are inaccessible to **A**. Why is that? Is **b** both prohibited and unprohibited? Prohibited because **A** can't marry her and unprohibited because she is really not **A**'s sister? What if **a** is mixed with a whole town's females, in which case jurists would say **A** may get married to one of them, whom it may be **a** herself in God's knowledge? Is **a** in this case not **A**'s wife in God's eyes? Ghazali says no. Our lack of omniscience necessitates the prohibition of **b**, and the ease in God's law leads to the permission of marrying one of the females of the town even if this leads to **A** marrying **a**, and God's sense of whether **A** and **a** are lawfully married in the proposed scenario is governed by whether humans followed his laws (i.e., hence, **A** is **a**'s lawful husband in God's eyes). (*Mustasfa*, Q1, v. 1, pp. 72-73)

Let's conclude this section of the essay with one simple generalization. Ghazali's *Mustasfa* is underlined by these two thoughts: **a**) God's control over creation parallels His control over the laws and, what appears to stand in a limited friction with this, that **b**) analogies between the observed world and the unobserved world are imperfect at best. I will take the second one first. This idea is a standard idea in Ash'ari polemics against Mu'tazilis in the century preceding Ghazali. In arguing about the exercises of jurisprudence an Ash'ari jurist must believe that 'holding the unobserved to the standards of the observed is a bad idea.' Analogies between the two worlds are both useful and dangerous; yet, in practice, Ghazali finds the broken analogies useful in arguing against opponents. One cannot assume, with Mu'tazilis, that learning of indications that something is good and available leads to thinking that it is permissible. Were a Sultan to allow his slaves to have all the prohibited pleasures under his supervision and be silent about it, that would be bad; yet, God does that with humans.

(Mustasfa, Q1, v. 1, p. 61) Would a person's statement that the variety of food in his realm is good and not harmful to humans be an indication that we are permitted to have it for ourselves? The latter rhetorical question shows that God's creation of useful/not-harmful things by itself is far from an implicit permission to benefit from them (= an argument against those who say that 'things are all under the category of permission' before the revelation). (Mustasfa, Q1, v. 1, p. 64)

The other insight is certainly a more crucial tool for the reader of *al-Mustasfa*. Roughly this goes something like this: If God can change his laws (via abrogation), it is the same as changing the conditions of the world. God can order you to pray then end your life; He can also ask you not to pray after he asked you to pray. Because God is a convergence point for language, human actions, and nature, no contradiction can be attributed to Him. Note some puzzling analogies in the discussion on abrogation, and an opportunity Ghazali exploits (Q1, v. 1, 110) to jibe at the *Rawafid* for accepting *bada'* (the idea that God changes His Mind)—mistakenly attributed to Ja'far b. Muhammad al-Sadiq—and the Qadaris/Mu'tazilis for thinking their explanations encompass God's ways: (Q1, v. 1, pp. 110-116).

JUWAYNI, **GHAZALI** & MAZARI

Ghazali was a student of Juwayni, and his *Mustasfa* owes a clear debt to Juwayni's *Burhan*. Why would a reader of Juwayni's *Burhan* find it deserving of blame undeserved by Ghazali in his *Mustasfa*? In *Idah al-Mahsul min 'Ilm al-Usul* (ed. 'Ammar al-Talibi, Beirut: Dar al-Gharb, 2001, henceforth *Idah*), a summary/commentary on Juwayni's *Burhan*, Mazari (d. 536/1141) sees the student and follower (Ghazali) to have succeeded where the teacher (Juwayni) failed. The difference comes down to how each one of them considered the nature of religious knowledge. Juwayni found much fault with the arguments of Muslim theologians (*mutakallimun*), which arguments seemed to benefit non-Muslim philosophers. Ghazali, in his *Mustasfa*, refrained from broad attacks on Muslim theologians and

jurists and limited himself to faulting some of them to the benefit of his orthodox Ash'ari and sometimes mystical views.

Mazari's (d. 536/1141) commentary on Juwayni's *Burhan* was critical of Juwayni and appreciative of Ghazali's abstention from calling attention to the Achilles heels of the scholars of the Islamic tradition when they relate to outsiders (naturalists, philosophers). Mazari detects a commitment in Juwayni to the observed world and physics (as well as to physical history) as the primary source of its study (the study of the world). This harkens back to how the metaphysical and the physical parallel and relate one to the other. Mazari (*Idah*, p. 55) explicitly states that a scholar's failure to avoid the pitfall of analogizing the two without a commonality (*sabab jami'*) 'leads to the dismantling of all the principles of the religion.' While this is followed by a gap in the manuscript of the *Idah*, Mazari eventually follows this general statement by describing the 'delicious emotion' of gratefulness to God and the pain one engenders when this affinity is lost, while God gains and loses nothing in either case. The rest of the *Idah* shows Mazari's distress at Juwayni's criticism of Muslim theologians and his leniency with the physicists.

There are intricate applications to Ghazali's sense that all sources of knowledge (language, nature, and revelation) converge at God. We learned from Ghazali that no goodness or badness inheres in the physical world or human acts. Since 'good' and 'bad' are neither intrinsic nor eternal (Mustasfa, Q1, v. 1, p. 59), abrogation, which is creating a new law to replace an earlier one, is possible. Abrogation (instituting a new obligation) is even possible before the worshipper gets a chance to fulfill an initial obligation. (Q2, v. 1, pp. 113-115) This impressive commitment to the conclusions of the religious law, as opposed to its logic or process, distinguishes Ghazali from Juwayni.

Juwayni's view of reason (*al-Burhan*, art. 36, references are to al-Dib's 1978 edition) acknowledges the need for the human reason to derive any knowledge from divine revelation (whose necessity is also argued throughout the *Burhan* based on assertions of reason's limits; e.g., how could reason really guess that the effort in gratefulness toward the One who bestows all of life's gifts would be compensated?). His leaning on the skeptical side captures uncorroborated sensory knowledge

(especially of the masses), reports of events (which may have a religious content, including miracles). All this while conceding generalizations by non-Muslim philosophers and physicists about the nature of the physical world. At the start of Q2, we noted, Ghazali puzzles his reader by saying that, even in the realm of the religious law (which has become dominated by religious conventions over the centuries), reason is good for negation but not affirmation, although it can be considered, with qualifications, a source of legal doctrines (*aslan min usul al adilla*), as we showed above. It is in shifts such as these that Ghazali's work is distinguished from that of his teacher's. Juwayni had certainly introduced Ghazali to epistemological inquiries on language, history, and nature. Yet, Juwayni's scheme (*al-Burhan*) appears more acquiescing to philosophers than Ghazali in the eyes of Mazari's (d. 536/1141).

Juwayni (art. 857) knows a human may be "certain in a certain region, then (weak) doubt captures his intellect where he, hence, is a little doubtful but still close to certain; then, doubt may capture a larger area of his mind, and his sense of an attainability of verisimilitude) is weaker." Qiyas (art. 676-1119) is where the grades of certainty and verisimilitude are most tested. But in *Istidlal* (art. 1127-1151), which is an area of reasoning in legal and moral instruction where one uses no text, consensus, or analogy, is where Juwayni appears lost. He could attack Malik b. Anas for his lack of disciplined reasoning. He even finds it harder to defend all of Shafi'i doctrines and legal reasoning.

Mazari shows some indignation at Juwayni's generalizations about the attainment of knowledge via the human reason. Abu al-Ma'ali (Juwayni), Mazari states, accepts the idea that there are four ways to derive theoretical knowledge: **a)** positing and testing (*sabr wa taqsim*), **b)** analogizing what is at hand (*shahid*, also the observed/observable) to what is not (*gha'ib*, unobserved), **c)** deriving conclusions from premises, and **d)** deriving conclusions in matters of disagreement from those conceded (first principles). Mazari laments Juwayni's willingness to attack these ways of deriving religious and legal knowledge and attacking the scholars of Islam who conceded their productivity. (Idah, p. 104) Mazari also contests that Muslim scholars limited themselves to these ways or took them as productive. When Juwayni (art. 50) listed the the sources of knowledge overall (*maratib al-ulum*), he mentioned **1)** one's

self-knowledge, **2)** apriori sense of the possible and the impossible, **3)** empirical (sensory) knowledge, **4)** knowledge of history based on concurrent reporting (tawatur), **5)** practical crafts (from repetition and habit), **6)** circumstantial indicators (e.g., blushing for shame), **7)** reason-based arguments (generally), **8)** knowledge of the possibility of prophecies, **9)** knowledge of reported miracles, **10)** knowledge of reported religious knowledge (Qur'an, Sunna, ijma'---he says). The order may have offended Mazari, but what is worse is subsequent open doubt scattered here and there, leaving the reader wondering what Juwayni really thought of human religious knowledge. Knowledge, Mazari concedes, in the sense of being certain, is the same (and is daruri). (Idah, 112) Yet, it is not so much an arena for the human reason, as Juwayni exaggeratingly claimed. Revelation educates this human reason about, for example, viewing God and the continuity of life after death, of which the human reason is capable of neither asserting nor of negating.

One of Ghazali's memorable statements in his *Munqidh* was that the logicians were usually strict in applying the standards of their logic, but when it came to 'theology' (ilahiyat), they were loose in applying them, as they failed to hold the high standards they set for themselves in logical inference in general. (Damascus: Dar al-Taqwa, ed. Mahmud Biju, 2002), p. 48-49) In his *Mustasfa* Ghazali confined himself to attacking non-Shafi'is who made mistakes in their arguments. For Ghazali (in the Introduction, I, v. 1, pp. 37-43), definite argument (burhan) is of two types, **1)** one that results from aggregation and comparison and this is of three types, where the shared quality that makes the aggregation and comparison productive is **a)** a subject in one premise and a predicate in the second, e.g., a body is composed; a composed object is generated (not eternal); hence, each body is generated|time-bound; in law, a date-drink (nabidh) intoxicates, and an intoxicant is prohibited; hence, nabidh is prohibited, **b)** (the shared quality) is a predicate in both premises, e.g., the Creator is not a body, since the Creator is not composed of parts; each body is composed; hence, the Creator is not a body, **c)** (the shared quality) is a subject in both premises, which jurists call naqd (with a dad), and this only yields a particular conclusion, e.g, blackness is an accident; black is a color; hence, (some) accidents are colors (jurists who argue that usury-susceptible is a quality equivalent to edibility, because wheat is both edible and usury-

susceptible make a mistake here and ought to realize that only some edibles are usury-susceptible) & 2) one that results from observing concomitance, e.g., if the world is generated, which we know is the case, then it requires a generator; in law, the wair prayer would be uperrugatory if it is performable on horseback, which we know is the case; hence, it is supererogatory. In this second type, the concomitance has to result from equality or being more particular; e.g., a jurist may not argue that a prayer is valid only if the worshipper is in a state of ablution; if the worshipper has it, that does not tell us whether his prayer is valid; similarly, the jurist may not argue that knowing that the prayer is invalid does tell us whether the worshipper has or lacks the requisite ablution.

Juwayni's debates with Shirazi (d. 476/1083) (Subki (ed. Hilw), *al-Tabaqat al-Kubra*, vol. 5, pp. 209-218) show him to be comfortable even doubting Shafi'i doctrine, although the debates are about gray areas in the law (whether a worshipper, being certain he had the direction wrong, must stop and restart, making a recognition of a mistake in direction the same as a recognition of making a mistake in whether the prayer window has started & whether a father may compel an old virgin daughter to marriage, just as he would be able to compel a young virgin; in both cases Shirazi is more consistent with the standard Shafi'i view---rejecting the two analogies). Juwayni, in sum, is accused by Mazari of bowing too much to the physicists. "Ancient philosophers tend to consider natural bodies and their effect one on the other, and if they could identify the reason or cause for an effect, and it seemed to follow from a necessary premise, they then say this is natural---arising from a natural cause, and its cause is such and such. When they fail to identify for a natural phenomenon causes or reasons, they call it inherent quality. They, thus, call their ignorance of the cause of a phenomenon a quality (*khassiyya*)....A believers is comfortable and not annoyed by these questions because she or he believes that God is the One who instilled these qualities in his creation." (Idah, p. 122) Juwayni was willing to defend the way of the ancient philosophers in demanding strict concomitance of cause and effect, while conceding arguments by those ancients, which simply repeated doctrines of the laws of physics without the high standards of evidence. Simultaneously, Juwayni required the high standards to establish the historicity of miracles and the reports of the Prophet

Muhammad's legacy of acts and speech. Ghazali, embarrassingly for someone like Ibn Rushd, is not as respectful of natural necessity. It is, ultimately, Ghazali's skepticism of physics and philosophy that appeals to Mazari and turns off Ibn Rushd.

Mazari's big quarrel with Juwayni had to do with his excessive skepticism about the sources of human knowledge. In p. 104, Mazari says that Juwayni limits these sources to four then reject three of them (taking the observed as a foundation of an analogy with the unobserved, syllogistic reasoning—or reasoning from premises to conclusions—and extending the zone of an agreement to what is beyond it) then leaves reduction as the only valid source of human knowledge. Mazari reminds the reader that Baqillani mentioned three of these four sources as possible sources of knowledge and never limited knowledge to them. In fact, he, Baqillani, explicitly stated that the sources of human knowledge could not be listed in an exhaustive list.

Ghazali may have learned that lesson and avoided excessive skepticism. He also learned to be critical of what natural philosophers celebrated too hastily. The laws of physics, limited and broken and unclear as they are, are not the way to learn more about God and are not reconcilable with the correct and infallible revelation (for Ghazali and Mazari). Juwayni may have started out close to this position but went straying a little. Ibn Rushd strayed much more, which made him unable to sympathize with a theologian's stance by the end of his journey.

MUSTASFA & THE SENSE OF USUL

Wolfhart Heinrichs would be satisfied with 'limited' rather than 'grand' conclusions in any exercise of *textological* history. I will attempt to heed this lesson in this brief conclusion.

Ghazali's impact on subsequent usul texts can be observed mostly in how his confidence in asserting standard Ash'ari/mystical views of the subjects of lawmaking continued to show up in later usul sources. But it wasn't not only the content, argument posture and spirit of his text; even his style left an impact. His very introductory sentence, claiming an agreement of 'reason' and 'revelation' that this world does not

provide a permamnet home, moving to asserting that ‘knowledge’ is the highest of all aims, repeats partly in Abu al-Thana’ al-Asbahani’s (d. 749/ Bayan al-Mukhtasar, a commentary on Ibn al-Hajib’s celebrated usul al-fiqh digest. Compare Ghazli’s (vol. 1, p. 3) with Isbahani’s (vol. 1, p. 4):

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وعلى آله وأصحابه وسلم كثيرا كثرة ينقطع دونها عمر العاقل الحاضر (أما بعد) فقد تناطح قاضي العقل وهو الحاكم الذي لا يعزل ولا يبدل وشاهد الشرع وهو الشاهد المزكى المعدل بأن الدنيا دار غرور لا دار سرور ومطية عمل لا مطية كسل ومنزل عبور لا منزلة جبر ومحل تجارة لا مسكن عماره ومصدر بضاعتها الطاعة وربحها الفوز يوم تقوم الساعة والطاعة طاعتان عمل وعلم والعلم أنجحها وأربحها فإنه أيضا من العمل ولكنه عمل القلب الذي هو أعز الأعضاء وسعى العقل الذي هو أشرف الأشياء لأنه مركب الديانة وحامل الأمانة اذ عرفت على الأرض والجال والسما فأشفق من جعلها وأبين أن يحملها فإغاة الآباء (ثم العلوم ثلاثة) عقلى محض لا يبحث الشرع عليه ولا يندب إليه كالحساب

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أما بعد :

فقد تطابق قاضي العقل ، وهو لا يُبدل ^(١) ولا يُعزل ، وشاهد الشرع ، وهو المزكى المعدل ، على أن أرجح المطالب وأربح المكاسب ، وأعظم المواهب ، وأكرم الرغائب هو العلم ؛ لأنه عمل القلب الذى هو أشرف الأعضاء ، وسعى العقل الذى هو أعز الأشياء .

What, then, is the sense of usul al-fiqh in Ghazali’s Mustasfa? Usul may denote sources, and furu’ human actions as judged by a jurist. But this is too simple. Baqillani sees the usul as sciences, horizons of training so to speak, which allows for the creation of a juristic mind. In Taqrib, vol. 1, pp 310-12, he enumerates these as eight, one pertaining to the Qur’an, three to the prophet’s legacy, one each for consensus, analogy-based reasoning, description of the legal scholar (mufti), and an eighth section on the philosophy of prohibition and permission as the essence of divine command.

إعلموا أن أصول الفقه محصورة.
فأولها ، الخطاب الوارد في الكتاب والسنة/ على مراتبه التي نذكرها من
من بعد.

In Shawkani's *Irshad al-Fuhul*, the *usul* derive from three sources, *lughah*, *fiqh*, and *kalam*. Ghazali's *usul* provide an outline of actions (Q1), sources of the law (Q2), how to derive 1 from 2 (Q3) and the qualifications of the scholar who performs the derivation (Q4). These two views of the field do converge more than they diverge. By quantity, most arguing in the *usul* horizon concerns *sabr wa taqsim* (ultimately, pointing to subtle distinctions our interlocutor fails to see). The art of debating does shape an author's work of *usul al-fiqh*, just as it shapes other genres.